

KAVANAUGH, J., concurring in part

judges who have previously tried to solve the same problem. In 1765, Blackstone—“the preeminent authority on English law for the founding generation,” *Alden v. Maine*, 527 U. S. 706, 715 (1999)—wrote that “it is an established rule to abide by former precedents,” to “keep the scale of justice even and steady, and not liable to waver with every new judge’s opinion.” 1 W. Blackstone, *Commentaries on the Laws of England* 69 (1765). The Framers of our Constitution understood that the doctrine of *stare decisis* is part of the “judicial Power” and rooted in Article III of the Constitution. Writing in *Federalist* 78, Alexander Hamilton emphasized the importance of *stare decisis*: To “avoid an arbitrary discretion in the courts, it is indispensable” that federal judges “should be bound down by strict rules and precedents, which serve to define and point out their duty in every particular case that comes before them.” *The Federalist* No. 78, p. 529 (J. Cooke ed. 1961). In the words of THE CHIEF JUSTICE, *stare decisis*’ “greatest purpose is to serve a constitutional ideal—the rule of law.” *Citizens United v. Federal Election Comm’n*, 558 U. S. 310, 378 (2010) (concurring opinion).

This Court has repeatedly explained that *stare decisis* “promotes the evenhanded, predictable, and consistent development of legal principles, fosters reliance on judicial decisions, and contributes to the actual and perceived integrity of the judicial process.” *Payne v. Tennessee*, 501 U. S. 808, 827 (1991). The doctrine “permits society to presume that bedrock principles are founded in the law rather than in the proclivities of individuals, and thereby contributes to the integrity of our constitutional system of government, both in appearance and in fact.” *Vasquez v. Hillery*, 474 U. S. 254, 265–266 (1986).

The doctrine of *stare decisis* does not mean, of course, that the Court should never overrule erroneous precedents. All Justices now on this Court agree that it is sometimes appropriate for the Court to overrule erroneous decisions. Indeed, in just the last few Terms, every current Member of